

Court No. - 35

Case :- WRIT - C No. - 43039 of 2018

Petitioner :- Kunwar Sain And 4 Others

Respondent :- State Of U.P. And Another

Counsel for Petitioner :- Gajendra Singh

Counsel for Respondent :- C.S.C.,Baleshwar Chaturvedi

Hon'ble Bharati Sapru,J.

Hon'ble Saurabh Shyam Shamsbery,J.

As prayed, put up this matter on 09.01.2019 as fresh.

Order Date :- 21.12.2018

S.P.

Court No. - 21

Case :- WRIT - C No. - 43039 of 2018

Petitioner :- Kunwar Sain And 4 Others

Respondent :- State Of U.P. And Another

Counsel for Petitioner :- Gajendra Singh

Counsel for Respondent :- C.S.C.,Baleshwar Chaturvedi

Hon'ble Pradeep Kumar Singh Baghel,J.

Hon'ble Pankaj Bhatia,J.

As prayed put up this case on 17.1.2019 as fresh.

Order Date :- 9.1.2019

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Court No. - 21

Case :- WRIT - C No. - 43039 of 2018

Petitioner :- Kunwar Sain And 4 Others

Respondent :- State Of U.P. And Another

Counsel for Petitioner :- Gajendra Singh

Counsel for Respondent :- C.S.C., Baleshwar Chaturvedi

Hon'ble Pradeep Kumar Singh Baghel,J.

Hon'ble Pankaj Bhatia,J.

All the five petitioners dispute the correctness of the electricity bill issued to them. The relief sought by the petitioners amongst others reads as under:

"Issue writ order or direction in the nature of issue a writ in the nature of certiorari quashing the impugned electricity bill cum disconnection notices dated 02.10.2018 (Annexure No. 4 to the writ petition) whereby erroneously and illegally asking them to pay the bills from the year 1998 and required to pay Rs. 72,152/-, Rs. 65,560/-, Rs. 89,572, Rs. 89,715 and Rs. 89,465/- respectively to the petitioners."

The grievance of the petitioner is that the respondents have issued the electricity bill cum disconnection notice dated 02.10.2018 wherein they have been asked to pay the bill from 1998 when the electrification in the village was not done.

It is stated that the respondents have completed the electrification work on 31.5.2017, hence they are not entitled to raise the bill prior to the said period which is patently erroneous.

Sri Baleshwar Chaturvedi, learned counsel for

the respondent no. 2, has received the notice on behalf of the respondent no. 2.

Our attention has been invited to the provision of Electricity Supply Code 2005 (in short 'Code 2005'). Section 6.5 of the Code 2005 deals with the disputed bills and arrears. The relevant sub-clause (a) & (b)(i)(ii) of the Code 2005 is extracted below:

"(a) If there is an error of a non-pecuniary nature (incorrect name, address etc.) in the bill the complaint shall be registered with the concerned competent authority. Correctness, if any, required, shall be made in the next bill. The consumer shall be required to make the payment before due-date.

(b) If a consumer disputes the accuracy of any bill, he may either make the payment under protest of (i) an amount equal to the sum claimed from him, or (ii) the electricity charges calculated on the basis of average of electricity bills of the preceding six months, whichever is less, and file a complaint with the competent authority, before the due date for payment. The complaint shall be decided within 7 days and consumer shall be informed.

(i) If the Complaint is found to be correct by the competent authority, a revised bill shall be issued within 7 days of the complaint and consumer shall be given 7 days to make the payment. The Consumer shall not be charged any late payment surcharge (and he shall be eligible for timely payment rebate, if any applicable) if the payment is made by the revised due date of payment. If payment has already been made, excess amount shall be adjusted in subsequent bills.

(ii) If the complaint was found to be incorrect the consumer shall be notified and directed to make the payment, if not already paid, as per the original bill immediately and the consumer shall be liable to pay the late payment surcharge."

A perusal of the aforesaid provision makes it clear that the petitioners have efficacious alternative remedy under the Code 2005 and without approaching the appropriate Authority

they have rushed to this Court under Article 226 of the Constitution of India.

In view of the above, we dispose off this writ petition leaving it open to the petitioners to move appropriate application under the aforesaid provision before the competent authority.

We hope and trust that in case any such application is made the authority concerned shall pass the order in accordance with law expeditiously.

With the aforesaid observations, the writ petition is disposed off.

Order Date :- 17.1.2019
Puspendra